IN THE NATIONAL COMPANY LAW TRIBUNAL,
NEW DELHI COURT III

Item No. 301
CAA-89(ND)/2021

IN THE MATTER OF:
M/s. Six Sigma Software Pvt. Ltd. And KMG Infotech Pvt. Ltd.

.....APPLICANT/PETITIONER

SECTION
U/s 230/232

Order delivered on 15.01.2024

CORAM:
SHRI BACHU VENKAT BALARAM DAS, HON'BLE MEMBER (JUDICIAL)

SHRI ATUL CHATURVEDI, HON'BLE MEMBER (TECHNICAL)

PRESENT:
For the Applicant :
For the OL : Ms. Hemlata Rawat and Rahul Bhatt Advs
For the RD : Ms. Shankari Mishra, Mr. Himanshu Singhal, Advs.

ORDER

On 16.10.2023, the Learned Counsel appearing for the Income Tax Department sought time to file report with respect to Demerging Company and Resulting Company No. 2. No one has appeared on behalf of the Income Tax Department nor any report has been filed. The Applicant is, therefore, directed to file an undertaking by way of an affidavit stating clearly that all the Income Tax dues with respect to all the Companies involved under the present scheme will be paid. The Applicant has filed rejoinder to the observations made by the RD. Mr. Himanshu Singhal, Learned Counsel appearing for the RD seeks time to take instructions. One week time granted.

List the matter on **26.02.2024.**

Sd/-

(ATUL CHATURVEDI)
MEMBER (TECHNICAL)

Sd/-

(BACHU VENKAT BALARAM DAS)
MEMBER (JUDICIAL)

Shammy
15.01.2024